

Court No. - 3

Case :- WRIT - C No. - 30823 of 2011

Petitioner :- M/S Meenu Paper Mills Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- A.N. Singh, Pankaj Kumar Shukla

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

Since the petitioner's contention is with regard to additional security only, several orders were passed in various writ petitions admittedly which are pending before this court and as per the statement of learned counsel appearing for the Corporation about five hundred matters are pending with such interim order.

We are of the view that this type of litigations cannot be kept pending indefinitely and are likely to be disposed of. Section 47 of the Electricity Act 2003 is to be read with Clause 4.20 of the U.P. Electricity Supply Code, 2005 in connection with the security and additional security.

The point has been agitated by the petitioner that if pre-paid scheme is provided no additional security is required to be paid to which the respondents' contention is that no pre-paid metre is available in the State.

However, we require counter affidavit to be filed by the respondents in this matter within two weeks. Rejoinder if any, be filed within one week thereafter.

However, subject to furnishing security, other than cash and bank guarantee, to the satisfaction of the respondents, the interim order which is passed in earlier matters i.e Writ Petition No.9849 of 2011 (M/S Ideal Hotel and Industries Ltd. Vs. Purvanchal Vidyut Vitran Nigam Ltd. & others), Writ Petition No.57134 of 2010 (M/S Swarup Rolling Mills Limited Vs. Pvvnl and others) and Writ Petition No.52911 of 2010 (Singhal Galvanizing Industries Vs. Pvvnl and others) will continue in respect of the matter till further order or orders to be passed by the court.

Let the matter be connected with Writ -C No.9849 of 2011 (M/S Ideal Hotel and Industries Ltd. Vs. Purvanchal Vidyut Vitran Nigam Ltd. & others).

Let the matter appear alongwith connected matter.

Order Date :- 25.5.2011

Sandeep